

Akshata W/O Gurulingayya Vastrad vs Gurulingayya S/O Mahadevayya Vastrad on 9 February, 2023

Author: M.G.S. Kamal

Bench: M.G.S. Kamal

- 1 -

CP No. 100003 of 2023

IN THE HIGH COURT OF KARNATAKA, DHARWAD BENCH

DATED THIS THE 9TH DAY OF FEBRUARY, 2023

BEFORE

THE HON'BLE MR JUSTICE M.G.S. KAMAL

CIVIL PETITION NO. 100003 OF 2023

BETWEEN:

AKSHATA W/O. GURULINGAYYA VASTRAD,
AGE: 35 YEARS, OCC HOUSE WIFE,
R/O BAGALKOT,
TQ. AND DIST. BAGALKOT - 587101.

...PETITIONER

(BY SRI. SHIVA SHIRUR, ADVOCATE)

AND:

GURULINGAYYA S/O. MAHADEVAYYA VASTRAD,
AGE: 41 YEARS, OCC: BANK EMPLOYEE,
R/O. NEAR SIDDESHWAR TEMPLE,
MATAPATI GALLI, VIJAYAPUR,
TQ. AND DIST. VIJAYPUR 586101.

...RESPONDENT

(BY SMT. DEEPA PAWAN DODDATTI, ADVOCATE)

THIS CIVIL PETITION IS FILED UNDER SECTION 24 OF CPC, PRAYING TO ALLOW THIS PETITION AND TRANSFER THE CASE IN MC NO. 217/2021 PENDING ON THE FILE OF HON'BLE PRINCIPAL JUDGE, FAMILY COURT, VIJAYAPURA TO THE HON'BLE PRINCIPAL JUDGE, FAMILY COURT, BAGALKOT, IN THE INTEREST OF JUSTICE AND EQUITY.

THIS PETITION, COMING ON FOR ADMISSION, THIS DAY,
THE COURT MADE THE FOLLOWING:

-2-

CP No. 100003 of 2023

ORDER

The present petition under Section 24 of CPC by the petitioner/wife seeking withdrawal of the petition in M.C.No.217/2021 pending on the file of the Principal Judge, Family Court, Vijayapura and transfer to Principal Judge, Family Court, Bagalkot.

2. The petition is filed contending inter alia that the petitioner is the wife of the respondent. Their marriage having been solemnized on 27.02.2015 at Siddeshwar Mangal Bhavan, Vijayapura in accordance with Hindu customs and rituals. That within few days of marriage the petitioner was subjected to harassment and was thrown out of the matrimonial home and she is presently residing in her parental home and she is blessed with a baby girl namely Viharika and the respondent had never visited either the petitioner or the child and has completely neglected them. That the respondent had issued notice through his advocate calling upon the petitioner to join the matrimonial home and since the respondent was not providing any maintenance and the petitioner not having any sufficient source of income, initiated proceedings in CrI.Misc.No.31/2018 under Section 125 of Cr.P.C., before the District and Sessions Judge, Bagalkot which after contest was allowed directing the respondent/husband to pay Rs.8,000/- to the petitioner/wife and Rs.3,000 to the daughter. That in the meanwhile the respondent/husband has filed a petition in M.C.No.217/2021 under Section 13(1)(ia)(ib) of the Hindu Marriage Act, 1955 seeking dissolution of the marriage before the Principal Judge, Family Court, Vijayapura. That the distance between Vijayapura and Bagalkot is about 110 kilometers and the petitioner not having any independent source of income or any support not able to attend the proceedings and contest the matter. Hence, the petition.

3. The petition is resisted by the respondent/husband by filing statement of objections admitting the marriage but however denying the allegation made in the petition. It is contended that the petitioner/wife had left the company of the respondent/husband constraining him to issue the notice calling upon her to come and lead the matrimonial life and to which the petitioner/wife had issued a reply expressing her readiness to join but did not join constraining the respondent/husband to file petition in M.C.No.127/2018 seeking restitution of conjugal rights in which the petitioner/wife appeared and contested the matter and the said petition was allowed and an execution petition in E.P.No.17/2019 was also filed, arrest warrant was issued against the petitioner. However, the said execution petition was withdrawn and the respondent/husband filed the present petition seeking dissolution of marriage. That the grounds of inconvenience being urged are unsustainable. It is also contended that the respondent/husband is working as a Peon at Karnataka Vikas Grameen Bank and has exhausted all his leaves and if he is forced to contest the matter at Bagalkot requiring to travel, he would loose his job as well, therefore, sought for dismissal of the petition.

4. Sri. Shiva Shirur, learned counsel appearing for the petitioner reiterating the grounds urged in the memorandum of petition submits that the petitioner is not having any independent source of income. It is only after she approaching the Court by filing the petition under Section 125 of the Cr.P.C., the respondent/husband was directed to pay the maintenance amount. It is submitted that the present petition for divorce is filed after disposal of the petition for maintenance. That the child is presently aged about 8 years and the petitioner is the only person who has to take care of the child's education. The travelling from Bagalkot to Vijayapura apart from involving expenditure also would cause hardship as she would not be able to attend the case effectively. Hence, seeks to allow the petition.

5. Per contra, Miss. Deepa Pawan Doddatti, learned counsel appearing for the respondent resisting the petition vehemently submits that the grounds for inconvenience cannot be countenanced in this case particularly in view of the fact that the petitioner/wife had on earlier occasion appeared and contested the petition filed by the respondent/husband at Vijayapura and now it does not lie in her mouth to say that it is inconvenient to travel all the way from Bagalkot. It is further emphasized that the respondent/husband has obtained employment on compassionate ground and would apprehend losing of the job as he has already exhausted all available leaves. She relies upon the judgment of the Co-ordinate Bench of this Court in the case of SMT.H.K.SUMA & ANOTHER Vs. M.SANTOSH passed in CP.No.367/2021 and submits that inconvenience of parties cannot be the sole criteria unless it is shown that injustice would be caused to the parties. Hence, she submits the petition lacks merits and seeks for dismissal of the same.

6. Heard. Perused the records.

7. The marriage between the petitioner and the respondent is not in dispute. The petitioner/wife filing the petition for maintenance and consequent order passed therein resulting in respondent being directed to pay maintenance is also not in dispute. Thus, the petitioner not having any independent source of income and being in custody of the minor child, is also stated to be taking care of her educational requirements. Though the distance between Vijayapura and Bagalkot which is claimed to be 110 kilometers by the wife and 80 kilometers by the husband, fact remains that there is a considerable distance between the two places. Though as contended by the learned counsel for the respondent that inconvenience of the parties cannot be only ground for consideration while transferring a petition and the grounds of injustice needs to be considered, it should also be born in mind that inconvenience of parties to effectively prosecuting the matter would eventually result in injustice. Balance has to be maintained. The facts situation of matter in the case relied upon by the learned counsel for the respondent is different from the one at hand.

8. Section 19 of the Hindu Marriage Act, 1955 mandates amongst other that the petition for divorce be filed either at the place where marriage has taken place or the place where the respondent is residing at the time of filing of petition.

9. In the instant case, the petitioner being wife, who is respondent in M.C.No.217/2021 filed by the respondent herein, is residing at Bagalkot. Even for the purpose of jurisdiction, under Section 19 of the Hindu Marriage Act, 1955 as noted above, petition is required to be filed before the Court at

Bagalkot. Besides the contention that the petitioner would be put to inconvenience and hardship in prosecuting the matter effectively deserves to be accepted.

10. In the overall consideration of the matter, this court is of the view that the petition is to be allowed and ordered accordingly.

11. M.C.No.217/2021 on the file of the Principal Judge, Family Court, Vijayapura is directed to be withdrawn and transferred to the Court of the Principal Judge, Family Court, Bagalkot, to be disposed of in accordance with law.

12. It is made clear that notwithstanding the petition being transferred from the the Principal Judge, Family Court, Vijayapura to the Principal Judge, Family Court, Bagalkot , the petitioner/wife shall not protract the matter unnecessarily causing inconvenience to the respondent/husband as well. The Family Court is requested to dispose of the matter expeditiously.

sd JUDGE RH